

injuries has outraged the survivors who see it as a travesty of justice. After examining 178 witnesses and poring over 3,008 sets of documents, it is akin to punishment for rash driving causing accidental death. Yet, the verdict itself was not that surprising. Ever since the division bench of the Supreme Court of the then chief justice A.M. Ahmadi and Justice S.B. Majumdar watered down the charges filed by the CBI against the accused from culpable homicide not amounting to murder to death due to rash and negligence act, a two-year jail term is the maximum punishment. Section 304 II could have attracted a more stringent life term or at least 10 years of rigorous imprisonment.

Justice Ahmadi has washed his hands off the affair, saying he went according to the law as it existed when he diluted the charges upon a petition by Mahindra and other accused even as the Jabalpur High Court had upheld the charges filed by the CBI. Survivors' groups, on whose hate-list Ahmadi figures pretty high, counter the claims. "It's a case of selective amnesia. While the CBI or the Government of India didn't file a review, we did. The review petition was dismissed by the same bench of Justice Ahmadi," alleges Abdul Jabbar, convener of the Bhopal Gas Peedit Mahila Udyog Sangathan.

The criminal case was almost dead and buried back in 1989 itself. While brokering the final settlement on February 14, 1989, the Supreme Court not just settled the compensation

claims but also the criminal cases after ordering UCC to pay US\$ 470 million. It was only upon widespread condemnation that the review petitions were allowed in 1991 and the criminal cases restored later. Later, Justice Ahmadi's bench not just diluted the charges, but also, in a separate decision, unfroze the movable and immovable assets of UCC attached by the CM's court in Bhopal, to allow the late British legal eagle Ian Percival to set up Bhopal Memorial Hospital and Research Centre in lieu. Coincidentally, after he retired Ahmadi took over as the chairman of the multi-crore trust that runs the hospital.

Some NGOs made a last ditch attempt to upgrade the charges in the criminal case under Section 216 of the CrPC through an application in the CM's court on April 26, 2010. It was not CBI investigators but Jabbar and his team that painstakingly tracked down key witnesses like the Bhopal plant's union leader Hatim Zariwala, its technical safety officer Kamal Parikh and advocate Shahnawaz Khan, who had issued the first legal notice to the plant management on May 4, 1983, a year and a half before the accident, for lax safety measures. Their depositions before the court made it evident that the safety standards were deliberately diluted by the management. Their intervention empowers a judge to upgrade charges during the course of a trial if any new evidence emerges.

However, the CM's court perhaps felt hamstrung by the order of Supreme Court in 1996 and rejected the application citing the two-decade delay in its filing. Now, the latest judicial twist adds another sad chapter to the legal bungling. In the wake of the nationwide furore over the verdict, the Madhya Pradesh Government has appointed a five-member committee headed by the additional solicitor general to weigh the legal options available

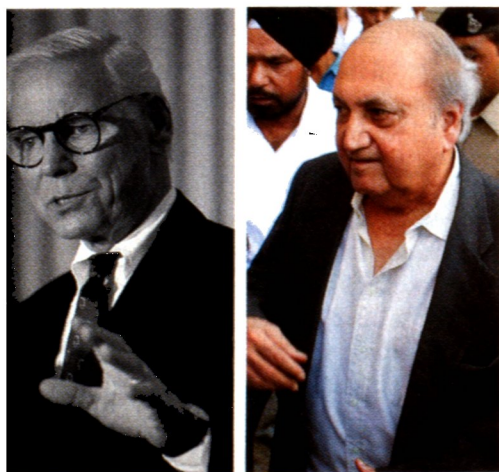


to it for seeking a more equitable sentence for the convicted.

Government's Failures

Says Law Minister Veerappa Moily: "There are lots of lessons to be learnt from this. This is one such case where justice is delayed and practically denied. I would like to say justice is buried." The tortuous journey of the case has, predictably, obscured many factors, including the Centre and the state Government's acts of omission and commission. That the Government of India was under pressure became clear as early as December 7, 1984 when Anderson, was released on a personal bond barely six hours after being arrested, following what has come under

ANDERSON (LEFT); AND MAHINDRA



ANDERSON CANNOT BE EXTRADITED WHILE MAHINDRA'S LAWYERS SAY AS NON EXECUTIVE CHAIRMAN HE HAD NO CULPABILITY.